MOTIVATION STATEMENT

BY

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REPORT OF THE MOTION ON DEVASTATING STRIKE AT THE NAMIBIAN BROADCASTING CORPORATION (NBC)

MARCH 2025

Honourable Speaker,

Honourable Members,

Allow me to present the report of the Parliamentary Standing Committee on Human Resources and Community Development on the Motion on Devastating Strike at the Namibian Broadcasting Corporation (NBC).

The Motion on Devastating Strike at NBC was tabled in the National Assembly in 2021, and subsequently referred to this Committee for further scrutiny and report back to the Assembly.

The main objectives of the Motion was to investigate the detrimental effects the strike had on NBC employees, before, during and after the strike, the exclusive N$5.4 million hefty bonuses for NBC Executive Management, and to establish circumstances around the purchase of a motor vehicle worth N$1.9 million for the NBC Director General.

The Committee met with different stakeholders among others; the NBC Board of Directors and Executive Management, the NBC employees, Ministry of Information and Communication Technology (MICT), Ministry of Labour, Industrial Relations and Employment Creation, Office of the Labour Commissioner, the Namibia Public Workers Union as a recognized bargaining union at NBC, and the Public Service Union of Namibia (PSUN) as an interested trade union.

Honourable Speaker,

Honourable Members,

I do not want to predict the discussions of the report which is before the Assembly. But, I am confident that Members had an opportunity to read the report and will enrich the debate when we discuss the report in detail.

Honourable Speaker,

Honourable Members,

The Committee found that the strike at NBC was real painful and devastating and the employees have paid a hefty price due to the prolonged strike.

For many years the workers of the public broadcaster has endured economic hardships and work related challenges as a result of continuous disregard by the NBC Management to attend to the grievances and demands for improvement of their salaries and conditions of service.

The demand for salary increments and other benefits including the agreed 5.2% backdated for 12 months then, the hefty bonuses for NBC Executives, and the motor vehicle bought for the Director General without satisfactory explanation to the employees were found to be the main causes of the strike.

Additionally, negotiations and efforts to reach an amicable solution in an effort to evade the strike were not successful. After a deadlock was reached through the conciliation efforts of the Office of the Labour Commissioner, a certificate of an unresolved labour dispute was eventually issued.

Honourable Speaker,

Honourable Members,

It was at this point when the majority of NBC workers who voted in favour of the industrial strike started experiencing the real sufferings during the strike on 22 April until 25 May 2021.

During the strike, the NBC Management then started introducing arbitrarily decisions which subjected employees to unilateral, unjust and unreasonable actions such as salary deductions for a period of six months without their consent; introduction of total cost to company pay structure; cancellation or reduction of benefits such as medical aid, annual salary progressive notches, annual leave days; withholding of third part payments, to mention a few.

Hon. Speaker,

Hon. Members,

Although the Labour Act, 11 (Act 11 of 2007) Section 76 (1), states that "an employer is not obliged to remunerate an employee for services that the employee does not render during a strike or lockout in compliance with section 12 (1)(a)", referring to ***"No Work No Pay Rule",*** the same Labour Act Section 12 (1) states that "An employer ***must*** not make any deduction from an employee's remuneration unless (a) the deductions is required or permitted in terms of a court order, or any law". Section 12 (2) states that "deductions made ***must*** not in aggregate exceed one-third (1/3) of an employee's remuneration.

Again, NBC only opted to apply for the *No Work No Pay Rule* without due consideration to the second part of the Labour Act when it comes to deductions from employee's salary, although employees were supposed to be notified, deductions agreed upon in writing and consented to before commencement of deductions from their salaries, but none of this was done.

These deductions affected the net pay of most employees and they were left devastated losing their properties such as vehicles and houses through re-possessions by the banks due to delayed or non-payment. The statutory deductions or contributions such as medical aid, insurance policies, pension and Pay as You Earn were also affected.

Hon. Speaker,

Hon. Members,

The Committee made several findings and recommendations to the key stakeholders for immediate action. Such stakeholders includes;

1. Ministry of Information and Communication Technology (MICT);
2. The Namibia Broadcasting Corporation (NBC), and
3. Ministry of Labour, Industrial Relations and Employment Creation;

Honourable Speaker,

Honourable Members,

Lastly, I would like to stress that the findings contained in this report reflects the gravity of the matter and the recommendations are therefore based on such findings.

I would like to thank my fellow Committee Members and all stakeholders whom we consulted for their cooperation rendered during this exercise.

I, therefore, request the National Assembly to discuss and adopt this report.

I thank you,